

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MARIE CAREW D/B/A/ HOLIDAY SHIPPING, *Complainant*

v.

MAERSK LINE A/S & JOHN DOES, *Respondents*.

DOCKET NO. 20-17

Served: May 13, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SCHEDULING ORDER

Complainant Marie Carew d/b/a Holiday Shipping (“Holiday Shipping”) initiated this proceeding by filing a complaint against Respondent Maersk Line A/S (“Maersk”), alleging that Maersk violated Shipping Act section 41102(c) and Commission Rule 545.4(d). Maersk moved for a judgement on the pleadings. On April 8, 2021, an order was issued denying Maersk’s request for judgment on the pleadings and instructing Maersk to file its response to the Complaint by April 28, 2021. The parties were also ordered to file a second joint status report with proposed schedule by May 10, 2021. On April 28, 2021, Maersk filed its answer to the Complaint.

On May 11, 2021, Maersk sent an email to the Commission stating that their “last communication with complainant’s counsel was yesterday evening, when we alerted him we would be constrained to write unilaterally in the event we did not hear further from him by this afternoon.” In addition, Maersk stated that to its knowledge there has been no change in the status of the cargo at issue at the port in Lagos, Nigeria; neither party has served any discovery demands; and proposed that summary judgment motions be due within the next thirty days.

Although no discovery has been requested, in an abundance of caution, the parties will be provided limited time to conduct discovery. The parties may also utilize discovery produced in any related cases. It is clear from the previous motion for judgment on the pleadings that there are significant factual disputes. Therefore, summary decision motions would be unlikely to resolve this proceeding. After discovery, the parties will proceed to brief the case as outlined below. An oral hearing will not be required.

The parties are directed to follow the schedule below to ensure that they proceed in an efficient manner. All requests for extensions of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of both parties to proceed expeditiously.

The parties must comply with the following deadlines:

May 28, 2021	Serve any discovery requests.
June 28, 2021	Respond to discovery requests.
July 26, 2021	Complainant files brief with proposed findings of fact and appendix.
August 23, 2021	Respondent files opposition brief with proposed findings of fact and responses to Complainant's proposed findings of fact, and appendix.
September 7, 2021	Complainant files reply brief with responses to Respondent's proposed findings of fact.

Failure to file by any deadline above may result in sanctions including dismissal. The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

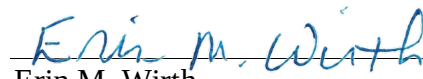
The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by disk, flash drive, or email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding

of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by disk, flash drive, or email.

4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2, CX 3 or RX 1, RX 2, RX 3, etc. The appendix should be secured in a three-ring binder;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (see 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.


Erin M. Wirth
Chief Administrative Law Judge